

25STCV27018 25STCV27018

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV27018 Hearing Date: August 20, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

20, 2026 TRIAL

DATE: May 8, 2028

CASE: Ebony O'Neil v. Los Angeles County Metropolitan Transportation

Authority, et al.

CASE NO.: 25STCV27018

PLAINTIFF

EBONY O'NEIL'S MOTION FOR RELIEF OF

WAIVER

OF TRIAL BY JURY

MOVING PARTY: Plaintiff Ebony O'Neil

RESPONDING PARTY: No opposition

I. INTRODUCTION

On September 15, 2026, Plaintiff, Ebony

O'Neil, commenced this negligence action against Defendants, Los Angeles County

Metropolitan Transportation Authority ("LACMTA") and Garey Logan ("Logan"), for

injuries arising from an automobile collision.

The Complaint states a demand for a jury trial.

On December 4, 2025, LACMTA filed its Answer to the Complaint.

On February 9, 2026, Logan filed his Answer to the Complaint.

On May 28, 2026, the court scheduled a non-jury trial. On the same day, Plaintiff filed a notice of deposit of jury fees.

On June 17, 2026, Plaintiff filed this motion to be relieved from waiver of jury trial.

The motion is unopposed.

II. LEGAL STANDARD

Under the California constitution, “[t]rial by jury is an inviolate right and shall be secured by all[.]”¹ Therefore, “[w]here doubt exists concerning the propriety of granting relief from [a jury trial] waiver, this doubt, by reason of the constitutional guarantee of right to jury trial, should be resolved in favor of the party requesting trial by jury.”² (Gann v. Williams Brothers Realty, Inc. (1991) 231 Cal.App.3d 1698, 1703-1704.)³ The court may, in its discretion upon just terms, allow a trial by jury despite the waiver.⁴ (Code Civ. Proc., § 631(g).)⁵ Where the right to jury is threatened, the crucial focus is whether any prejudice will be suffered by any party or the court if a motion for relief from waiver is granted.⁶ (Tesoro del Valle Master Homeowners Ass’n v. Griffin (2011) 200 Cal.App.4th 619, 638-39.)⁷ “A trial court abuses its discretion as a matter of law when ‘. . . relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver. [Citations.]’”⁸ (Wharton v. Superior Court⁹ (1991) 231 Cal.App.3d 100, 104.)¹⁰

III. DISCUSSION

Plaintiff seeks relief from waiver of a jury trial on the grounds her waiver of a jury trial resulted from the “inadvertent failure of plaintiff’s counsel’s legal assistant to forward a jury-fee-advancement request

to plaintiff's attorney service." (Mot., p. 3:5-6.) Plaintiff continues, "The waiver was not knowing or intentional. It was discovered at the earliest practicable moment, and jury fees were promptly paid upon discovery." (Mot., p. 3:9-10.)

The jury fee shall be due no later than 365 calendar days after the filing of the initial complaint. (Code Civ. Proc., § 631, subd. (c)(2).) The failure to deposit the fees waives the party's right to a jury trial. (Code Civ. Proc., § 631(f)(5).)

Given there is no opposition to the motion, and Plaintiff has since deposited jury fees, the court will grant the requested relief.

IV. CONCLUSION

The unopposed motion to be relieved from waiver of jury trial is GRANTED.

Plaintiff to give notice, unless waived.

Dated: August 20, 2026

Brock T. Hammond

Judge of the Superior Court